

SPR097246 Estate of Lennice Katherine Ambrose-Gordon

County: sonoma

Division: Probate

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Motion: Administrator Tricia Chandler's Application for Payment of Interim Extraordinary Attorney Fees

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Estate of Lennice Katherine Ambrose-Gordon

SPR097246

Administrator Tricia Chandler's Application for Payment of Interim Extraordinary Attorney Fees

Tentative Ruling: The petition is GRANTED for the reasons set forth below. Extraordinary fees are awarded, but Ms. Singler's rate is reduced to \$525.00/hour. Thus, the overall award of extraordinary compensation to the petitioner's attorney for fees is \$371,936.92. This figure includes \$10,117.00 awarded for work on this petition for extraordinary fees. This finding of extraordinary fees, necessarily and reasonably incurred for those matters described in the motion as supplemented, serves the purpose of fixing the total amount of extraordinary fees awarded for those matters, and shall be a conclusive determination in the future. Of this amount, the Court orders a preliminary distribution of \$125,000 to be made now. The Court finds both components of this order necessary, the total amount awarded (\$371,936.92), and of that amount, the total amount to be preliminarily distributed now (\$125,000), so that there is no question later about what fees have or have not been found to be reasonable and necessary for various matters, or for what matters additional fees may be sought in the future.

Costs are awarded in the amount of \$18,450.00. The awards of both costs and fees is to be a charge against the estate. Prob C §10830(c). If the estate does not have the liquidity to satisfy the extraordinary fees, whatever cannot be paid is a liability of the estate.

I. Extraordinary fees

In addition to ordinary compensation under California Probate Code (Prob C) §10810, the court may allow compensation for extraordinary services by the attorney for the personal representative in an amount the court determines is just and reasonable. Prob C §10811(a). The grant or denial of such fees is addressed to the sound discretion of the probate court. Estate of Gilkison (1998) 65 Cal.App.4th 1443, 1448. Extraordinary services are those not involved in a typical probate case. Estate of Hilton (1996) 44 Cal.App.4th 890, 895.

All of the fees requested here are related to litigation in this case and in the related civil case that are not involved in a typical probate case. Also, the litigation efforts that form the basis of this award have been a benefit to the estate. California courts have recognized extraordinary fees as appropriate in circumstances such as successfully defending a will contest (Estate of Schuster (1984) 163 Cal.App.3d 337, 340-341,) and resolving complex tax disputes that result in significant savings to the estate (In re Lanza's Estate (1964) 229 Cal.App.2d 720, 726-727.) Also see California Rules of Court (CRC) Rule 7.703(c). In making an allowance for extraordinary services, or in disallowing a claim therefor, the court may take into consideration all matters relating to the administration of the particular estate, such as the value of the estate, the kind and character of the assets, the effort involved in the care and preservation of estate property, and such other facts as bear upon the labor and effort of the executor, administrator and attorney in the routine administration of the estate. In re Walker's Estate (1963) 221

Cal.App.2d 792, 795.

Four months have passed since the issuance of letters, so the petition is timely pursuant to Prob C §10830(a)(2).

II. May 8, 2026 ruling

The Court's May 8, 2026 ruling states that it is likely appropriate to award a preliminary distribution of some extraordinary compensation in this case. The problems discussed in the said ruling are essentially the lack of sufficient allegations and lack of specificity of the allegations in support of the fee award. The Court was focused on avoiding confusion if additional extraordinary fees are requested in the future. In the May 8, 2026 ruling, the Court wrote, "At the end of this case, should the Court be presented with an application for extraordinary compensation, the Court, and opposing counsel, must be able to determine for what matters extraordinary compensation has or has not already been awarded. As the motion is presented in its current form, if the Court were to award a blanket \$125,000 amount, that is a very uncertain proposition." The Court also wrote, "Also, as presented currently, the Court is unable to evaluate the reasonableness of the compensation requested, specifically as to the rates charged by individual billers based on their qualifications." For these reasons, the Court allowed supplement briefing.

III. Lodestar rules

The following rules are stated in the Court's May 8, 2026 ruling (citations are omitted): The number of hours reasonably expended multiplied by the reasonable hourly rate is the starting point for calculating reasonable fees. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. In calculating the lodestar, the reasonable hourly rate is that prevailing in the community for similar work. The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. In the unusual circumstance that local counsel is unavailable, or that hiring local counsel was impracticable, the trial court is not limited to the use of local rates and may instead use the hourly rate of out-of-town counsel from a higher fee market in calculating the lodestar amount. The determination of reasonableness of fees is within the broad discretion of the trial court.

A. What is the reasonable rate for Mr. Singler?

The rates for the attorneys, other than Mr. Singler, and the paralegal, are all well within the reasonable range. However, even at his reduced rate of \$750/hour, Mr. Singler's rate is too high. There is no adequate justification presented for this high rate, which is well above the community standard.

The lodestar calculation begins with a determination of the "reasonable hourly rate," i.e., the rate "prevailing in the community for similar work."

(PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095, 95 Cal.Rptr.2d 198, 997 P.2d 511.) The general rule is "[t]he relevant 'community' is

that where the court is located." (Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71, 171 Cal.Rptr.3d 714.)

However, "in the unusual circumstance that local counsel is unavailable," or that "hiring local counsel was impracticable," the trial court is not

limited to the use of local rates and may instead use the hourly rate of out-of-town counsel from a higher fee market in calculating the lodestar

amount. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 399, 33 Cal.Rptr.3d 644.)

Marshall v. Webster, (2020) 54 Cal.App.5th 275, 285–286.

Mr. Singler is local and does not argue that he should be awarded a higher fee because he is from some higher fee market. Instead, he argues that Tricia Chandler could find no other attorney in the community to help her (which proposition is corroborated by Ms. Chandler's supplemental declaration,) and that Mr. Singler knows of no other attorney in the local community that has the ability to successfully perform all of the tasks required in this case without taking payment for over three years. Mr. Singler initially declined representation because his rates are too high for standard probate matters. He cites *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 399. The *Horsford* ruling deals with increased fees for out-of-town counsel, and Mr. Singler is not out-of-town counsel. Mr. Singler is very well qualified and very well experienced, and his client has had a significant amount of success in this matter. Nonetheless, the Court does not find a sufficient basis to conclude that Mr. Singler's rate should exceed the top rate for probate practitioners in this community, which is \$525.00/hour. The Court has considered whether to apply the principles of *Horsford*, by analogy, to the facts here. However, it finds the vague assertions of Ms. Chandler about her inability to find other qualified counsel insufficient as a basis for similar findings to those made in *Horsford*, even were the Court inclined to apply that rule. The Court has also considered whether the \$750 rate might be appropriate for some of the matters considering some of the litigation was civil, and not probate. However, the Court finds that rate is above the community standard even for civil litigation of the nature at issue here. So, the Court uses the rate of \$525 per hour, which it finds reasonable, in calculating the overall award of extraordinary fees.

IV. Supplemental allegations in support

It is the duty of a petitioner for extraordinary fees to state with sufficient particularity their claim for extraordinary compensation so that the court, as well as those interested in the estate and who are authorized to object thereto, may be informed fully of the nature of the extraordinary services allegedly rendered, as well as of the necessity and value of such services to the estate, and be thereby enabled to distinguish the items which are a proper charge from those which may be unjust and improper. In *re Herbst's Estate* (1938) 26 Cal.App.2d 249, 251. The petitioner in such a proceeding is charged with the burden of proof as to the necessity of the services, and there should be a full and complete disclosure of the extent and character thereof from which the court may properly determine the just and reasonable amount to be allowed. *Id.* Where paralegal services are included, the petition must set forth the hours spent and services performed by the paralegal. Prob C §10811.

After considering both the supplemental declaration and the original declaration, the Court finds the petitioner has now met her burden to show the fees were properly incurred, and that they are for extraordinary services. The petitioner gives the Court sufficient information to make a determination as to the reasonableness of the time spent and fees requested, and the matters embraced therein.

As for the argument that pre-probate pursuit of appointment is not recoverable, this is not correct. Ms. Chandler's efforts to become and then serve as administrator were necessitated by Mr. Gordon's mishandling of the estate assets. Her appointment and administration has been a significant benefit to the estate. The Court finds it is both just and reasonable to award extraordinary compensation for Ms. Chandler's attorney's work done in having her appointed as administrator. Prob C §10811. As for the opponent's citation to *Estate of Turino* (1970) 8 Cal.App.3d 642, 648, that case does not stand for the notion that extraordinary fees are only awardable where the administrator defends claims against the estate, as argued by the opponent. As for the partition action, Ms. Chandler's participation in that action was both extraordinary and reasonably necessary.

V. Fees on fees

The supplement seeks \$14,302.00 for the preparation of this petition. When attorney fees are recoverable by statute, the reasonable attorney fees incurred in preparing the motion are also recoverable. *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 1002. When an amount of attorney fees is statutorily authorized, the reasonable expenses of preparing the application for fees should be included in the award. *Estate of Trynin* (1989) 49 Cal.3d 868, 875. Also, litigation in support of attorney's request for extraordinary compensation, where prior compensation awards are not adequate compensation under all the circumstances, is a specific example of an activity for which extraordinary compensation may be allowed. CRC Rule 7.703(c).

The opponent complains that the original application for fees did not request fees for bringing the petition, and thus the issue is not properly before the Court. The complaint implies a lack of adequate notice and opportunity to respond to this aspect of the fee request. However, 15 days' notice is sufficient on a petition for extraordinary fees. Prob C §§10830(b)(1), 1220(a)(1). The supplement filed May 20, 2026 was served by mail on May 22, 2026, which is more than 15 days before June 11, 2026, the date the opposition was filed. This was adequate notice of the fees on fees request. Despite having sufficient notice, the opponent does not contest the factual basis for the fees or assert other meaningful argument as to the request.

The supplemental Singler declaration addresses the \$14,302.00 fees on fees request. Counsel indicates that he spent 18.6 hours, and Laura Feil (paralegal) spent 2.2 hours doing all the work necessary for this motion. This involved research and reviewing all invoices and proceedings. Reducing Mr. Singler's fees to \$525.00/hour, the fees on fees award is \$10,117.00.

VI. Requests for Judicial Notice

The opponent's requests for judicial notice (both initial and supplemental) are GRANTED subject to the following qualifications: For those documents that contain hearsay or otherwise contain disputable facts, even those that are part of the court record or are recorded with the county recorder's office, the existence of those documents is noticed but the truthfulness and proper interpretation of the contents of the documents are not noticed. As for orders, findings of fact and conclusions of law, and judgments, the court takes judicial notice of the existence of those documents, as well as the truth of facts asserted in those documents. See *Day v. Sharp* (1975) 50 Cal. App. 3d 904, 914.

Counsel for the petitioner is directed to lodge an updated proposed order that conforms to this ruling. The Court will sign and file a written order after hearing.